



DECISION

Complaint No. : POS/528/2024/F-133

Name and address of the complainant : Mr. Saeed Khan S/o Saleem Khan, R/o House No. RB-9/21, Rubina Manzil, Burns Road, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigating Officer : Syed Ali Mumtaz Zaidi, (PAS), Advisor-F

Vetted by : --

Subject : **COMPLAINT AGAINST THE BUILDER FOR ALLEGED ILLEGAL COMMERCIAL CONSTRUCTION ON RESIDENTIAL PLOT NO. RB-9/20, NEAR KARACHI HALEEM, BURNS ROAD, KARACHI.**

THE COMPLAINT:

Mr. Saeed Khan in his complaint dated 18.01.2024 stated that two shops namely *Tahir Masala Wala* and *Sheikh Masala Wala* are operating on Plot No. RB-9/20 near Karachi Haleem, Burns Road, Karachi. He submitted that the area is purely residential however the said shops are carrying out commercial activities. He alleged that heavy spice grinding machinery is being used at the premises causing noise and pollution in the surrounding area causing inconvenience and health problems to the residents of the locality. He further stated that a hospital is situated nearby and due to the activities of the said shops patients and ambulances face difficulty in accessing the hospital etc. He had approached the concerned departments for initiating legal action against the said shops but to no avail. He therefore sought intervention of this Institution.

PROCEEDINGS:

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) and the matter was taken up with the concerned Agencies.
3. In response the Director, Anti Encroachment, TMC Saddar, Karachi vide letter dated 16.05.2024 reported that the allegations made by the complainant were found to be correct. It was stated that the owners of Sheikh Masalah (Mr. Tasleem Sheikh) and Tahir Masala (Mr. Tahir) were using a heritage plot for commercial purpose. The public was facing difficulties in this residential area due to the spice / Food Masalah business being carried out at the premises. Pedestrians and the patients of the nearby Memon Hospital were also reportedly affected by the smell of Masalah powder. It was further reported that the shop owners had encroached upon the footpaths and the streets in front of their shops, thereby affecting traffic flow and the movement of ambulances. He furnished photographs of the shops in support of his contention.
4. The Mukhtiarkar Aram Bagh vide letter dated 28.06.2024 reported that the Supervising Tapedar of the concerned beat visited the site and reported that the

shop of Tahir Masala Wala is operating business on plot No.RB-9/19, Rambagh Quarters, Karachi and produced photocopy of Registered Sale Deed in respect of M/s. Tahir Masalawala which shows commercial shop premises No.G/4. He further reported that as per their office record the plot No. RB-9/19 measuring 521 sq. yds. is held on Municipal Tenure under a 99 years lease commencing from 30.05.1905. The premises No. G-4 entered in the name of (1) Shaikh Aziz Ahmed, (2) Muhammad Tahir, (3) Perwaiz Ahmed, (4) Muhammad Fareed, (5) Muhammad Tasleem Shaikh.

5. The Deputy Director (Technical), District Incharge (South), Environmental Protection Agency, Government of Sindh vide letter dated 05.08.2024 forwarded the site visit Report of Field Assistant, Sindh-EPA, Karachi. The report stated that during site visit/investigation the following observations were found:

- i). There are no sign of fresh construction on the plot;
- ii). Warm and exotic sultry / smell of different spices observed;
- iii). Tahir Masala is a two shutter shop;
- iv). Spice grinding machine is installed in Tahir Masala shop;
- v). Sheikh Masala is a three shutter shop;
- vi). One spice grinding machine is installed in Sheikh Masala shop;
- vii). They are having approval from Trade Mark Registry, Intellectual Property Organization, Sindh Food Authority, District Municipal Corporation and possess the required sale deed.

6. Hearing was fixed by issuing notices to all concerned Agencies.

7. On 04.09.2024 Deputy Director Sindh Environmental Protection Agency, Mukhtiarkar Aram Bagh accompanied with Tapedar and the Assistant Director South, SBICA appeared before the Investigating Officer and their statements were recorded. The Mukhtiarkar stated that the venue in question falls within the purview of land department KMC. As far as 99 years KMC Tenure is concerned, to their knowledge, the same has expired and its renewal falls within the domain of KMC. However, the Assistant Director SBICA stated that the premises is under jurisdiction of SBICA. He submitted a report dated 04.09.2024 inter-alia stating that the premises is an enlisted Protected Heritage building and no approval/record was found with SBICA. The Deputy Director EPA committed to conduct environmental pollution testing at the site due to crushing/open stocking of Masala/spices through its Lab Section.

8. The Sindh Food Authority was also taken on board. The Deputy Director appeared before the Investigating Officer on 16.10.2024 and stated that the samples of items in question had been sent to the Laboratory for technical analysis and that the report would be furnished upon receipt.

9. Subsequently on 14.11.2024 Mr. Masood Rehman, Officer of Sindh Environmental Protection Agency Karachi furnished a letter reporting that as per directions the SEPA Team visited the site to conduct Ambient Air Monitoring along-with related Lab Instruments for on-spot analysis. However, the team was not allowed to carry out the testing. It was reported that the owner of Tahir Masala called their Advocate, who allegedly tried to threaten the SEPA Team and prevented them for conducting Lab Analysis. The SEPA team reportedly faced very harsh behaviour from Tahir Masala Owner and their Advocate.

FINDINGS:

10. From the material available on record, it is evident that commercial spice/Masalah grinding activity is being conducted at the premises in a residential/heritage building, raising issues relating to land use, environmental compliance, encroachment on adjoining footpaths/streets and public inconvenience including movement of ambulances. The Environmental Protection Agency (EPA) confirmed the installation of open-top spice grinding machines in both shops and observed a strong smell of spices at the site. However, environmental testing could not be completed due to resistance allegedly offered by the shop owner of Tahir Masalah.

DECISION:

11. I, in exercise of the powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh, Act 1991 (amended up to date), hereby direct the:

- i). **Secretary to Government of Sindh, Culture, Tourism, Antiquities & Archaeology Department and the Director General, Sindh Building Control Authority** to examine the status of the building in question being an enlisted protected heritage building and ascertain whether the commercial use being carried out therein is lawful. In case of unauthorized commercial conversion or violation of building laws, appropriate action be initiated strictly in accordance with law under intimation to this Office;
- ii). **Senior Director Land, Karachi Metropolitan Corporation, Karachi** for necessary action as per law, rules, regulations; with respect to lease issue;
- iii). **Municipal Commissioner, TMC Saddar, Karachi South** is directed to remove any encroachments on footpaths and public streets in front of the said shops forthwith, in accordance with law, and ensure that public passage, including access for ambulances, remains unobstructed;
- iv). **Director General, Sindh Environmental Protection Agency (SEPA)** shall conduct Ambient Air Quality Testing and environmental assessment at the site. The shop owners are directed to fully cooperate with SEPA officials. In case of any obstruction, SEPA shall proceed in accordance with the provisions of the Sindh Environmental Protection Act and take appropriate legal action.
- v). **Deputy Commissioner, Karachi South** shall provide the security to SEPA team during their visit to subject shops so that they may carry out their activity without any resistance.

12. **Compliance report should be submitted within 45 days.**

Given under my hand and seal of office



Sd /-

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz. PAS

Ombudsman Sindh

Karachi, dated 17th March, 2026